

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2724

By: Ford

AS INTRODUCED

An Act relating to surplus property; amending 74 O.S. 2021, Section 62.3, which relates to exemptions from the Oklahoma Surplus Property Act; permitting the donation of Oklahoma Highway Patrol vehicles to certain law enforcement agencies; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 62.3, is amended to read as follows:

Section 62.3. A. The Director of the Office of Management and Enterprise Services shall promulgate rules for use by state agencies and the Office of Management and Enterprise Services to dispose of surplus property. The rules shall include standards for recordkeeping, methods for removal or disposal of surplus property, and acquisition by state agencies and authorized entities of surplus property, and for Office management of surplus property programs.

B. A state agency selling, trading, redistributing or otherwise disposing of surplus property shall comply with the rules promulgated by the Director.

1 C. The Office shall make surplus property available to state
2 agencies and authorized entities, which shall include political
3 subdivisions, school districts, and nonprofit entities of this
4 state.

5 D. The provisions of the Oklahoma Surplus Property Act shall
6 not apply to institutions of higher education in this state, the
7 Oklahoma Historical Society, the University Hospitals Authority or
8 University Hospitals Trust or the Northeast Oklahoma Public
9 Facilities Authority. The Grand River Dam Authority shall be exempt
10 from the provisions of the Oklahoma Surplus Property Act for any
11 surplus property disposed of prior to November 1, 2006. CompSource
12 Oklahoma shall be exempt from the provisions of the Oklahoma Surplus
13 Property Act if CompSource Oklahoma is operating pursuant to a pilot
14 program authorized by Sections 3316 and 3317 of this title.

15 E. Notwithstanding the provisions of the Oklahoma Surplus
16 Property Act, the Oklahoma State Bureau of Investigation may,
17 pursuant to rules promulgated by the Oklahoma State Bureau of
18 Investigation Commission for that purpose, donate any surplus
19 property, as defined in Section 62.2 of this title, to any law
20 enforcement agency of any political subdivision of the State of
21 Oklahoma. The use of such donated equipment shall be limited to
22 valid and authorized law enforcement efforts by the receiving
23 agency.

1 F. Notwithstanding the provisions of the Oklahoma Surplus
2 Property Act, the Oklahoma Highway Patrol may, pursuant to rules
3 promulgated by the Director of the Office of Management and
4 Enterprise Services, donate surplus Oklahoma Highway Patrol vehicles
5 driven over ninety thousand (90,000) miles to any law enforcement
6 agency of any political subdivision of the State of Oklahoma in a
7 county with a population of no more than one hundred thousand
8 (100,000) residents. The use of such donated vehicles shall be
9 limited to valid and authorized law enforcement efforts by the
10 receiving agency.

11 SECTION 2. This act shall become effective November 1, 2025.

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